constraints relating to the safety of persons, the ship or the port (see appendix 1 for sampling procedures; an AFS Inspection Report template for sampling and analysis is attached to the Guidelines).

3.3 Action taken under the AFS Convention

Detention

3.3.1 The port State could decide to detain the ship following detection of deficiencies during an inspection on board.

3.3.2 Detention could be appropriate in any of the following cases:

.1 certification is invalid or missing;

.2 the ship admits it does not comply (thereby removing the need to prove by sampling); and

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SOURCE: MEPC.208(62).pdf
during an inspection on board.

3.3.2 Detention could be appropriate in any of the following cases:

.1 certification is invalid or missing;

.2 the ship admits it does not comply (thereby removing the need to prove by sampling); and

.3 sampling proves it is non-compliant within the ports jurisdiction.

3.3.3 Further action would depend on whether the problem is with the certification or the anti-fouling system itself.

3.3.4 If there are no facilities in the port of detention to bring the ship into compliance, the port State could allow the ship to sail to another port to bring the anti-fouling system into compliance. This would require an agreement of that port.

Dismissal

3.3.5 The port State could dismiss the ship, meaning that the port State demands that the ship leaves port for example if the ship chooses not to bring the AFS into compliance but the port State is concerned that the ship is leaching tributyltin (TBTs) into its waters.

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ship leaves port for example if the ship chooses not to bring the AFS into compliance but the port State is concerned that the ship is leaching tributyltin (TBTs) into its waters.

3.3.6 Dismissal could be appropriate if the ship admits it does not comply or sampling proves it is non-compliant while the ship is sti ll in port. Since this would also be a detainable deficiency the PSCO can detain first and require rectification before release. However, there may not be available facilities for rectification in the port of detention. In this case the port State could allow the ship to sail to another port to bring the anti-fouling system into compliance. This could require agreement of that port.

3.3.7 Dismissal could be appropriate in any of the following cases:

.1 certification is invalid or missing;

.2 the ship admits it does not comply (thereby removing the need to collect proof by sampling; and

.3 sampling proves that the ship is non-compliant within the ports jurisdiction.

3.3.8 In these cases the ship will probably already have been detained. However,

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proof by sampling; and

.3 sampling proves that the ship is non-compliant within the ports jurisdiction.

3.3.8 In these cases the ship will probably already have been detained. However, detention does not force the ship to bring the AFS into compliance (only if it wants to depart). In such a situation the port State may be concerned that the ship is leaching TBTs while it remains in its waters.

Exclusion

3.3.9 The port State could decide to exclude the ship to prevent it entering its waters. Exclusion could be appropriate if sampling proves that the ship is non-compliant but the results have been obtained after it has sailed or after it has been dismissed.

3.3.10 Exclusion could be appropriate if sampling proves that the ship is non-compliant but the results have been obtained after it has sailed or after it has been dismissed. Article 11(3) of the AFS Convention only mentions that the "party carrying out the inspection" may take such steps. This means that, if a port State excludes a ship, the exclusion cannot be automatically applied by other port States.

3.3.11 In accordance with Procedures for Port State Control (resolution A.787(19), as

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such steps. This means that, if a port State excludes a ship, the exclusion cannot be automatically applied by other port States.

3.3.11 In accordance with Procedures for Port State Control (resolution A.787(19), as

amended), where deficiencies cannot be remedied at the port of inspection, the PSCO may allow the ship to proceed to another port, subject to any appropriate conditions determined. In such circumstances, the PSCO should ensure that the competent authority of the next port of call and the flag State are notified.

Reporting to flag State

3.3.12 Article 11(3) of the AFS Convention requires that when a ship is detained, dismissed or excluded from a port for violation of the Convention, the Party taking such action shall immediately inform the flag Administration of the ship and any Recognized Organization which has issued a relevant certificate.

4 AFS REPORT TO FLAG STATE IN RESPONSE TO ALLEGED CONTRAVENTIONS

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immediately inform the flag Administration of the ship and any Recognized Organization which has issued a relevant certificate.

4 AFS REPORT TO FLAG STATE IN RESPONSE TO ALLEGED CONTRAVENTIONS

4.1 Article 11(4) of the AFS Convention allows Parties to inspect ships at the request of another Party, if sufficient evidence that the ship is operating or has operated in violation of the Convention is provided. Article 12(2) permits port States conducting the inspection to send the Administration (flag State) of the ship concerned any information and evidence it has that a violation has occurred. Information sent to the flag State is often inadequate for a prosecution. The following paragraphs detail the sort of information needed.

4.2 The report to the authorities of the port or coastal State should include as much as possible the information listed in section 3. The information in the report should be supported by facts which, when considered as a whole, would lead the port or coastal State to believe a contravention had occurred.

4.3 The report should be supplemented by documents such as:

.1 the port State report on deficiencies;

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supported by facts which, when considered as a whole, would lead the port or coastal State to believe a contravention had occurred.

4.3 The report should be supplemented by documents such as:

.1 the port State report on deficiencies;

.2 a statement by the PSCO, including his rank and organization, about the suspected non-conforming anti-fouling system. In addition to the information required in section 3, the statement should include the grounds the PSCO had for carrying out a more detailed inspection;

.3 a statement about any sampling of the anti-fouling system including:

.1 the ship's location;

.2 where the sample was taken from the hull, including the vertical distance from the boot topping;

.3 the time of sampling;

.4 person(s) taking the samples; and

.5 receipts identifying the persons having custody and receiving transfer of the samples;

.4 reports of the analyses of any samples including:

.1 the results of the analyses;